

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Finch	Team: Squad #14	CCRB Case #: 201605630	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 05/11/2016 12:00 AM, NA, 05/___/2016 5:00 PM	Location of Incident: 163rd Street and Union Avenue in the Bronx	18 Mo. SOL 11/1/2017	Precinct: 42
Date/Time CV Reported Wed, 06/29/2016 11:52 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 06/29/2016 11:52 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Nanhao Chen	00000	944428	PA UPTU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. Officers			042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Nanhao Chen	Discourtesy: Lieutenant Nanhao Chen spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . LT Nanhao Chen	Discourtesy: Lieutenat Nanhao Chen gestured discourteously toward § 87(2)(b)	B . Unsubstantiated

Case Summary

On June 29, 2016, § 87(2)(b) filed a complaint at the CCRB.

On an unknown date in May 2016, § 87(2)(b) was on the corner of Union Avenue and 163rd Street in the Bronx walking to the store. An unmarked vehicle stopped near § 87(2)(b) and Lieutenant Nanhao Chen and two unidentified officers from the 42nd Precinct exited the vehicle and arrested § 87(2)(b) for an outstanding bench warrant. § 87(2)(b)'s brother § 87(2)(b) approached the scene and asked officers why § 87(2)(b) was being arrested. Lt. Chen allegedly told § 87(2)(b) to "Back the fuck away from the car," extended his middle finger and said, "Suck my dick" before driving away (**Allegations A and B**).

Video footage was unavailable for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation.
- As of August 26, 2016, there has been no Notice of Claim filed with the NYC Comptroller's office regarding this incident (BR 01).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) and § 87(2)(b) have one other CCRB complaint #201605630 which is still open (BR 03).
- Lt. Chen has been a member of the NYPD for 9 years and has 3 prior CCRB complaints with 3 allegations (see officer history). One of these allegations was an unsubstantiated discourtesy – word allegation; § 87(2)(g)
[REDACTED]

Potential Issues

- § 87(2)(b) declined to provide a sworn statement on the counsel of his lawyer (BR 04).
- After providing his sworn statement, § 87(2)(b) was uncooperative with the investigation and was unable to provide information for any witnesses (BR 05).
- The civilians and officers in this case were unable to correctly identify the date of this incident, § 87(2)(g).
The civilians reported the incident approximately two months after it occurred and estimated the date as May 11, § 87(2)(g).
§ 87(2)(b) claimed to recognize one of the witness officers as PO Sean Casey of the 42nd Precinct, but neither PO Casey's memo book, Lt. Chen's testimony, nor any other police records placed PO Casey at the scene. Lt. Chen recalled being involved in the arrest of § 87(2)(b) at some point in time, but did not recall when that was. None of

the police records that were obtained listed § 87(2)(b)'s arrest or any record of the incident.

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A – Discourtesy: Lieutenant Nanhao Chen spoke discourteously to § 87(2)(b)

Allegation B – Discourtesy: Lieutenant Nanhao Chen gestured discourteously toward § 87(2)(b)

According to § 87(2)(b) when he approached the § 87(2)(b)'s arrest location Lt. Chen told him, "Back the fuck away from the car" (BR 06). After Lt. Chen reentered the his vehicle, he pointed his middle finger at § 87(2)(b) and said, "Suck my dick."

According to § 87(2)(b) Lt. Chen was with two other officers. § 87(2)(b) said one of the other officers (not Lt. Chen) told § 87(2)(b) "Suck my dick" (BR 07). § 87(2)(b) also said that all three officers were uncooperative when asked by § 87(2)(b) why § 87(2)(b) was being arrested, and used profanity.

According to Lt. Chen, he was involved in the arrest of § 87(2)(b) but could not specify the date. He denied that during this incident he gestured his middle finger or said, "Suck my dick," toward § 87(2)(b) (BR 08). Lt. Chen did not recall telling § 87(2)(b) to "back the fuck away from the car." Lt. Chen said he was working in a vehicle with at least one partner, but did not recall which officers they were.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Squad: 14

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date